Miami County Common Pleas Court
07/31/2023 08:02 AM
Shawn M. Peeples
Clerk of Courts

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER	*	CASE NO. 23 CV 117
Plaintiff	*	JUDGE JEANNINE N. PRATT
	*	
vs.	*	
OHIO HOSPICE, INC., ET. AL.	*	DECISION & ENTRY DENYING DEFENDANT OHIO HOSPICE'S MOTION TO DEEM
Defendants	*	ADMISSIONS

This matter comes on for consideration on Defendant's Motion to Deem Admissions and to filed July 14, 2023. Plaintiffs attached *Exhibit 1-5* in support of the Motion. Plaintiff filed a Response and Memorandum in Opposition on July 18, 2023 along with a Notice of Leave to Plead. Defendant filed a Reply Memorandum on July 21, 2023 and a Response in Opposition to the Notice of Leave to Plead.

Defendant claims that it served Requests for Admission and other discovery on Defendant on June 13, 2023. Defendant's counsel contacted via mail Plaintiff's counsel on July 12, 2023 regarding the overdue discovery, stating the Request for Admissions are deemed admitted pursuant to Civ.R. 35. Plaintiff's counsel responded immediately with an email stating that Plaintiff was ill, experiencing ongoing medical issues due to her traverse myelitis condition (medical condition at issue in this case), has difficulty speaking and responding to request presents an enormous undertaking given her condition. Defendant's counsel did not respond immediately and indicated on July 14, 2023 that they had already filed with this Court a Motion to Deem Matters Admitted.

Defendant claims that Civ.R. 36(A)(1) is self-executing, therefore, the Requests for Admissions were already admitted upon Defendant's failure to timely respond. Defendant requests that the Court deem the requests to be admitted as a formality.

Defendant relies on the proposition that Civ.R. 36(A)(1) is self-executing, and the matters must be deemed admitted absent compelling circumstances for the failure to timely respond to discovery. However, in *Crespo v. Harvey*, 2d Dist. Montgomery Co. 25861, 2014-Ohio-1755, the Second District Court of Appeals held that compelling circumstances is not required by Civ.R. 36. The Court held that a party may be permitted to withdraw admissions that result from failure to timely respond if it "aid[s] in reaching the merits and that the non-moving party is not prejudiced by the withdrawal or amendment." *Id.* at paragraph 21. The Court clearly indicated that the Rule will be construed to aid in reaching the merits of the case. The Court further held, in *Cotrill v. Noah's Transport, LLC*, 2d Dist. No. 2014-CA-2, 2014-Ohio-2098, that "while Civ. R. 36(B) does not require a movant to demonstrate compelling circumstances for failing to timely respond to a request for admissions, the trial court may still consider whether there is a justifiable excuse for the failure, as well as any other pertinent facts, when considering the culpability of the party that failed to respond." *Id.* at paragraph 10.

In this case, Plaintiff states in her Response that the Requests for Admission, if deemed to be admitted, will likely be dispositive of the merits of the case. Defendant does not indicate that it will be prejudiced by accepting the responses. Although Plaintiff was negligent, it has not demonstrated a pattern of indifference to discovery or to the orders of the Court and thus, there is minimal inconvenience to the Court and Defendant if the Requests for Admission are not deemed admitted. *Cotrill v. Noah's Transport, LLC, supra.*, at paragraph 14. Therefore, in light of the holdings in *Crespo* and *Cotrill*, the Court finds that not deeming the Requests as admitted would have little prejudice to Defendant and would assist in reaching the merits of this action.

Accordingly, Defendant Ohio Hospice's Motion to Deem Admissions to be admitted is not well-taken, and is hereby denied.

IT IS SO ORDERED.

JEANNINE N. PRATT, JUDGE

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cc: Thomas L. Reitz, Attorney for Plaintiff
Barbara L. Barber, Attorney for Defendant BWC (Non-Participating Party)
David C. Korte, Michelle D. Bach & Joshua R. Lounsbury,
Attorney for Defendant Ohio Hospice, Inc.

√ Reg Mail